

25TRCV01568 25TRCV01568

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-01

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Case Number: 25TRCV01568 Hearing Date: September 1, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter

Tuesday, September 1, 2026

Department M Calendar No.

PROCEEDINGS

Pueblo Gardena Homeowners Association v. High Tech
Painting & Construction, Inc., et al.

25TRCV01568

1. Pueblo

Gardena Homeowners Association's Motion to Enter Judgment Pursuant to
Settlement Agreement

TENTATIVE RULING

Pueblo

Gardena Homeowners Association's Motion to Enter Judgment Pursuant to
Settlement Agreement is granted.

Background

Plaintiff

filed the Complaint on May 14, 2025 and the First Amended Complaint on May 19, 2025. Plaintiff alleges the following facts. Defendants conducted negligent work on a construction project on property managed or owned by Plaintiff.

Motion
to Enforce Settlement Agreement

CCP § 664.6 states: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

Plaintiff contends that the parties entered into a settlement agreement on May 6, 2026. (Decl., Steven J. Revits, 3, Ex. 1). Plaintiff states that Defendant breached the terms of the settlement agreement. According to Plaintiff, Defendant has failed to make the payment due within 30 days of the making of the agreement which is a requirement under the terms of the agreement. (Id. at ¶ 3-5). Plaintiff's request for attorneys' fees, interest, and costs, pursuant to paragraph 11 of the settlement agreement, is also approved. The Court notes that Defendant failed to file any written opposition to the motion.

Therefore, the Court determines that Plaintiff has met its burden to establish that a breach of the settlement agreement exists such that a judgment, pursuant to the terms of the settlement agreement, may be ordered.

Thus, Plaintiff's Motion To Have Judgment Entered Pursuant To Settlement Agreement is granted.

Plaintiff is ordered
to give notice of this ruling.